

Hawthorne Army Depot
Virtual Library Use and Non-Disclosure Agreement

1. This Agreement applies to individuals utilizing the Virtual Library via SAM.gov in support of Sources Sought W519TC-25-S-HWAD, for the operation and maintenance of Hawthorne Army Depot (HWAD).
2. This Agreement contains the rules of conduct relating to access to documentation for this acquisition as well as conduct regarding the safeguarding of its information.
3. Your signature on this Agreement indicates that you have read this Agreement and agree to be bound by its terms.
4. Virtual Library information is the property of the U.S. Department of Defense and/or the U.S. Army and is only to be released to U.S. citizens directly involved in the proposal preparation for the HWAD acquisition. Precautions should be taken to ensure that information is used in a manner that precludes unauthorized access/release. All documents within the Virtual Library contain an Export Control Warning Notice and are subject to the Arms Export Control Act (Title 22, U.S.C., Sec 2751, et. seq.) or the Export Administration Act of 1979, as amended, Title 50, U.S.C., App. 2401 et. seq. Further dissemination of restricted data must be in accordance with provisions of DoD Directive 5230.25.
5. The Government is providing the material for informational purposes only. The Government does not guarantee successful performance or conforming product if properly followed. Offerors shall bear full responsibility for use of the data in any manner pertinent to preparation of proposals or preparation for future plant operations.
6. Upon completion of the purposes for which the data has been provided, the Contractor is REQUIRED to destroy all documents, including all reproductions, duplications, or copies thereof further distributed by the Contractor. Destruction of this technical data shall be accomplished by shredding, pulping, burning or melting any physical copies and/or deletion or removal of downloaded files from computer drives and electronic devices, and any copies of those files. Upon completion, the contractor shall send a certification of destruction to the Procuring Contracting Officer.
7. Persons are advised that illicit use or disclosure of this data, especially unauthorized export, may result in criminal prosecution of the individual(s) responsible, including officers of the company. As well, serious penalties for the company may result, such as revocation of certifications and exclusion from the export process.
8. I agree to the Terms of this Agreement and certify that I have read and understand the above Agreement. By accessing the Virtual Library, the user acknowledges he/she understands and agrees to the above terms.

Name (Printed)

Signature

Company

Date